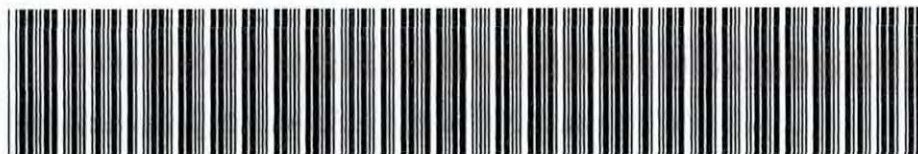


DI07-015

EWR D&I ANNOTATION

FAN-000001L063001DP125-6447

Artemis # : 000001L063001DP125

Record Created Date : 04/02/2007

Printed Date : 04/02/2007

Description :

THE DRIVER OF THE SUBJECT VEHICLE WAS EXITING A PRIVATE DRIVEWAY AND HEADED WESTBOUND ON A LOCAL ROAD WHEN THE DRIVER DID A U-TURN, AND BEGAN TO TRAVEL EASTBOUND IN THE WESTBOUND LANE. THE RIGHT FRONT THE SUBJECT VEHICLE STRUCK A 2001 FORD F350 VEHICLE IN THE FRONT CENTER. THE SUBJECT VEHICLE'S AIRBAG DEPLOYED ON IMPACT. NO LEGAL REPRESENTATION IS IDENTIFIED IN THE SUBMITTED DOCUMENTS. THE POLICE REPORT INDICATES THAT BOTH DRIVERS WERE WEARING THEIR SEATBELTS. DRUG/ALCOHOL TESTS WERE STILL PENDING. THE DRIVER OF THE SUBJECT VEHICLE WAS OPERATING THE VEHICLE ON A SUSPENDED LICENSE AT THE TIME OF THE CRASH EVENT. THE INVESTIGATING OFFICER NOTED NO VEHICLE DEFECTS. THE SUBJECT VEHICLE MANUFACTURER HAS NOT COMPLETED AN ASSESSMENT OF THIS CRASH EVENT.

Print

Close





U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

FEB 21

Ms. Gay Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217ph
DI07-015

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors (GM) in its light early warning report from 3rd quarter of 2006. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 11, 125, 129, 146, 162, 167, 172, 186, 241, 261, 272, 273, 348, 358, 361, 371, 397, 437, 456, 462, 491, 494, 515, 518, 521, 524	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the attached spreadsheet.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.



VEHICLE SAFETY HOTLINE
888-327-4236

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

This letter is being sent to GM pursuant to 49 U.S.C. § 30166, which authorizes NHTSA to conduct any investigation that may be necessary to enforce Chapter 301 of Title 49 and to request reports and the production of things. It constitutes a new request for information. GM's failure to respond promptly and fully to this letter could subject GM to civil penalties pursuant to 49 U.S.C. § 30165 or lead to an action for injunctive relief pursuant to 49 U.S.C. § 30163. (Other remedies and sanctions are available as well.) Section 5(a) of the TREAD Act, codified at 49 U.S.C. § 30165(b), provides for civil penalties of up to \$5,000 per day, with a maximum of \$16,050,000 for a related series of violations, for failing or refusing to perform an act required under 49 U.S.C. § 30166. See 49 CFR 578.6 (as amended by 69 Fed. Reg. 57864 (Sept. 28, 2004)). This includes failing to respond to ODI information requests.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, Room 5219, 400 Seventh Street, S.W., Washington, D.C. 20590.

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **March 23, 2007**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS NORTH AMERICA
Structure & Safety Integration

March 23, 2007

Ms. Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
National Highway Traffic Safety Administration
400 Seventh Street, S.W.
Washington, DC 20590

VED
215
2007 MAR 27 A 10:17

DEFECTS INVESTIGATION

NVS-217ph
DI07-015

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated February 21, 2007 regarding certain death and injury incidents reported by GM in its light early warning report from 3rd quarter of 2006.

GM's response is comprised of 33 CDs for the incidents that are the subject of DI07-015.

Attachment "A" includes instructions for navigating the CD. Each CD, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 129 203427344 - 514185 and 2006 Chevrolet Cobalt. When the CD is launched, this identification number appears again along with all of the documents (including photographs and videos) on the CD listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 129 203427344 - 514185_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the first two Inquiries and Responses in the index for the CD are as follows:

DI07-015
129 203427344 - 514185
2006 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Documents.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

129 203427344 - 514185_01_1 - is the first document responsive to Inquiry no. 1.
129 203427344 - 514185_02_1 - is the first document responsive to Inquiry no. 2.

Product Investigations

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DI07-015 Response.doc



Your inquiries and our corresponding replies are as follows:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See Attached Documents.

The table below lists the incidents that are the subject of DI07-015, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR), or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further. As such, the document included in response to Inquiry 1 that can be found on the enclosed CD for the PAR and Rumor case listed in the table, may not be a claim or notice of the type generally defined as such by §579.4(c).

(26 Vehicles from the BMH template)			
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)		TYPE
✓ 11	203426976-		NISM
✓ 125	203426862-		NISM
✓ 129	203427344-		NISM
✓ 146	203427546-		RUMOR
✓ 162	203427026-		NISM
✓ 167	203426947-		RUMOR
✓ 172	203427595-		NISM
✓ 186	203427398-		NISM
✓ 241	203427385-		LIT
✓ 261	203426764-		NISM
✓ 272	203426902-		NISM
✓ 273	203427403-		NISM
✓ 348	203427092-		RUMOR
✓ 358	203427555-		NISM
✓ 361	203427685-		NISM
✓ 371	203427189-		RUMOR
✓ 397	203426814-		LIT
✓ 437	203426885-		LIT
✓ 456	203427572-		LIT
✓ 462	203426837-		NISM
✓ 491	203426904-		NISM
✓ 494	203427078-		NISM
✓ 515	203427658-		NISM
✓ 518	203427782-		NISM
✓ 521	203427095-		RUMOR
✓ 524	203426911-		NISM

2. **Provide a copy of the Police Accident Report.**

Response: See Attached Documents.

3. **At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.**

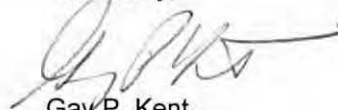
To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators, and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,



Gay P. Kent
Director
Product Investigations

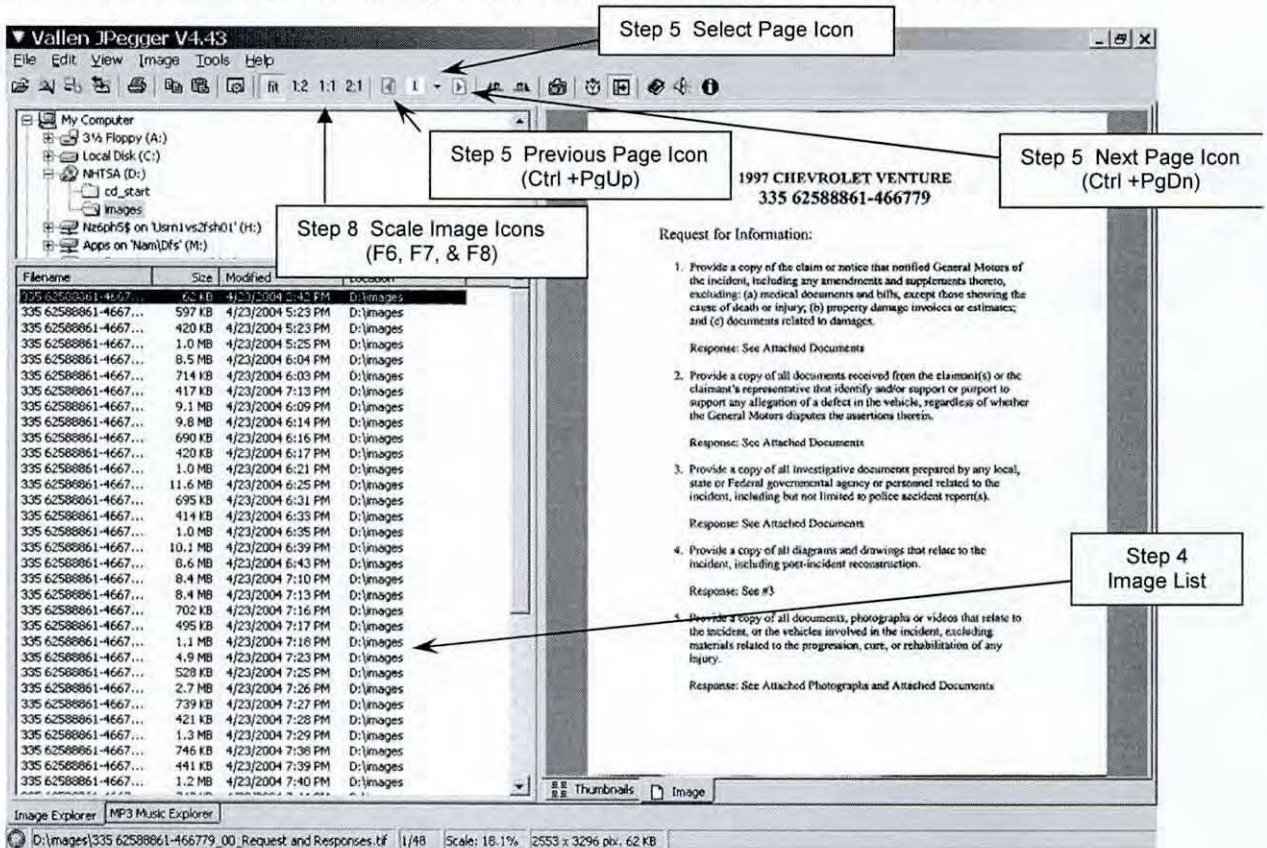
Enclosures: 33 CDs
Attachment A

Attachment A Instructions for using CD Viewer

1. Insert the CD into the CD ROM drive; the CD will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.

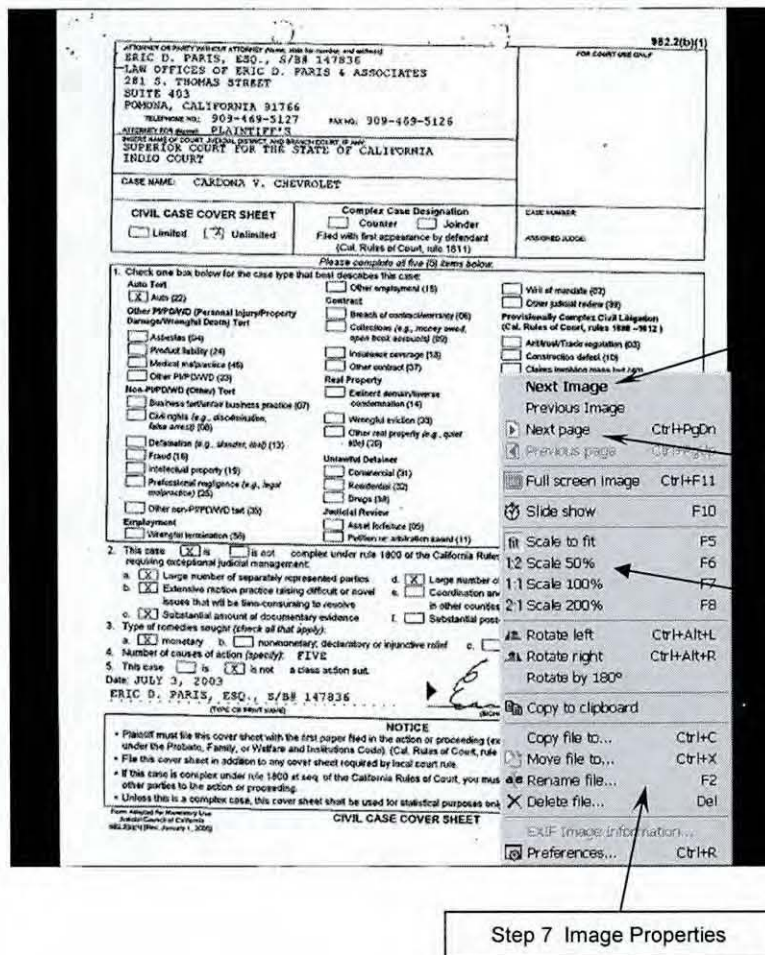


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DI07-015 Response.doc



- Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl +PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl +PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
- By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl +PgDn** or **Ctrl +PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
- Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
- If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.



DI07-015
125 203426862 – 512905
2006 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document and Photographs.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

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Two injured in major accident

By JOHNNY JOHNSON, The Daily Sentinel

Friday, July 07, 2006

It was touch and go at Nacogdoches Memorial Hospital most of the day Thursday — in the emergency room and in the ER waiting room.

A large crowd had gathered — many of them upset. A loved one, [REDACTED] was critically injured during an apparent head-on collision early before 9 a.m. They had not been given much reason to hope. And by late afternoon, his condition had shown no improvement.

The accident, which occurred in the 1400 block of Douglass Road, was reported to police at 8:50 a.m. Thursday.

Initially, police at the scene weren't sure what exactly had happened or how the two cars collided, so they brought in an accident reconstruction expert.

The reconstruction revealed that [REDACTED] was apparently exiting the McLemore car wash headed toward downtown, but he was traveling on the wrong side of the roadway.

That's when authorities said [REDACTED] 2000 Chevy Cobalt ran head-on into an oncoming Ford truck, driven by [REDACTED] of Nacogdoches.

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Police said [REDACTED] was not wearing a seatbelt, and witnesses at the scene said it appeared that his head injury may have occurred because he hit the windshield, between the two front airbags.

Friends and family at the emergency room said [REDACTED] brain was swelling, and he had suffered a broken neck during the crash.

██████████ was also transported to the hospital with non-incapacitating injuries.

At 7 p.m. Thursday, [REDACTED] was on life support and in critical condition.

Johnny Johnson's e-mail address is johnsonj@coxnews.com.

AD LINKS

Lower Blood Pressure

The Mayo Clinic and NDC agree it's a safe way to Lower Blood Pressure
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Lufkin man injured in wreck dies

By JOHNNY JOHNSON, The Daily Sentinel

Saturday, July 08, 2006

A Lufkin man, who was critically injured in a two-vehicle accident Thursday morning, died Friday afternoon at Nacogdoches Memorial Hospital.

Police said [REDACTED] died at 1:40 p.m. Friday as a result of injuries sustained in Thursday's collision.

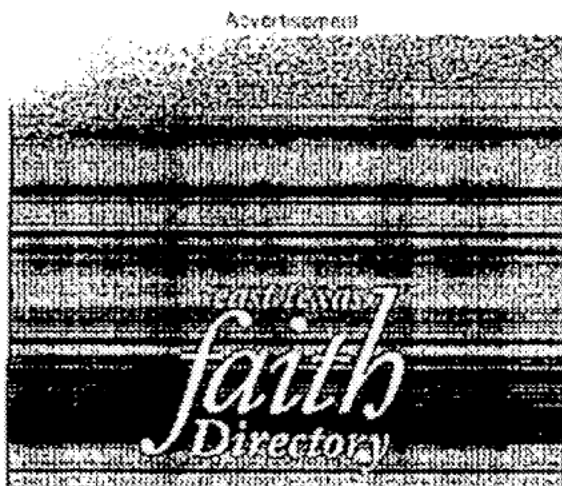
A police reconstruction of the accident revealed that [REDACTED] was apparently exiting a car wash in the 1400 block of Douglass Road traveling east on the wrong side of the roadway.

That's when authorities said [REDACTED] 2008 Chevy Cobalt ran head-on into an oncoming Ford 350, driven by [REDACTED] of Nacogdoches.

Police said [REDACTED] was not wearing a seatbelt, and he was taken to Memorial's trauma center with a massive head injury.

Johnny Johnson's e-mail address is johnson@coxnews.com.

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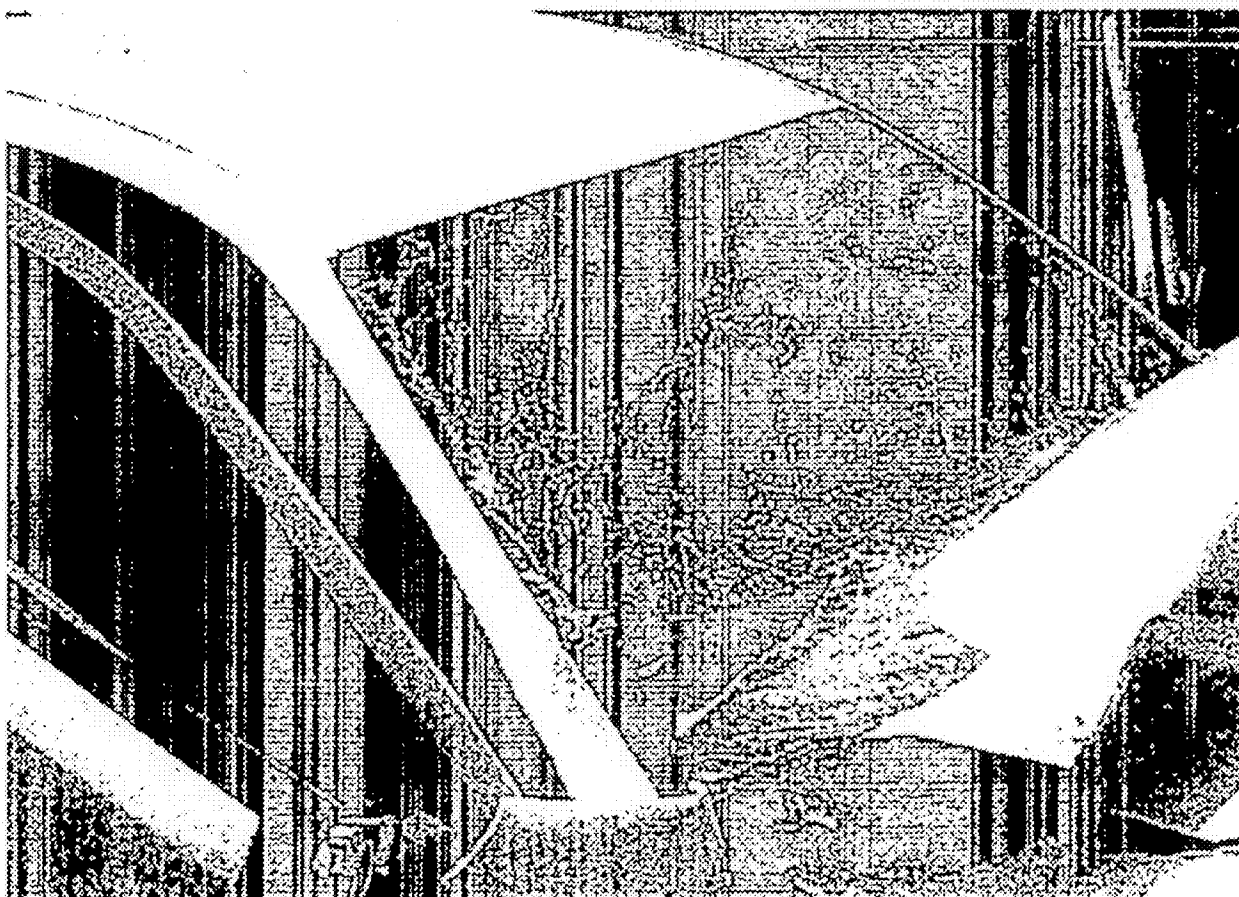
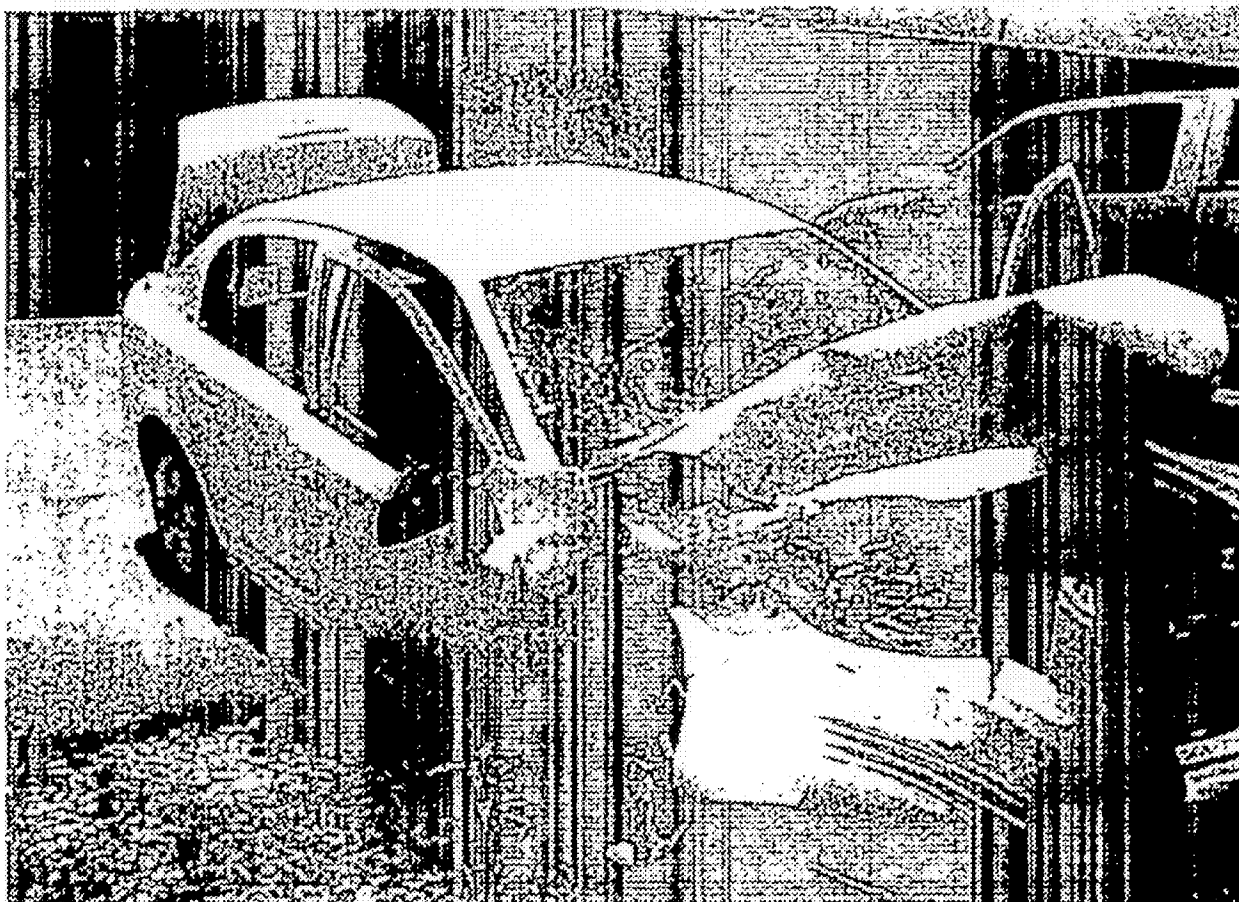
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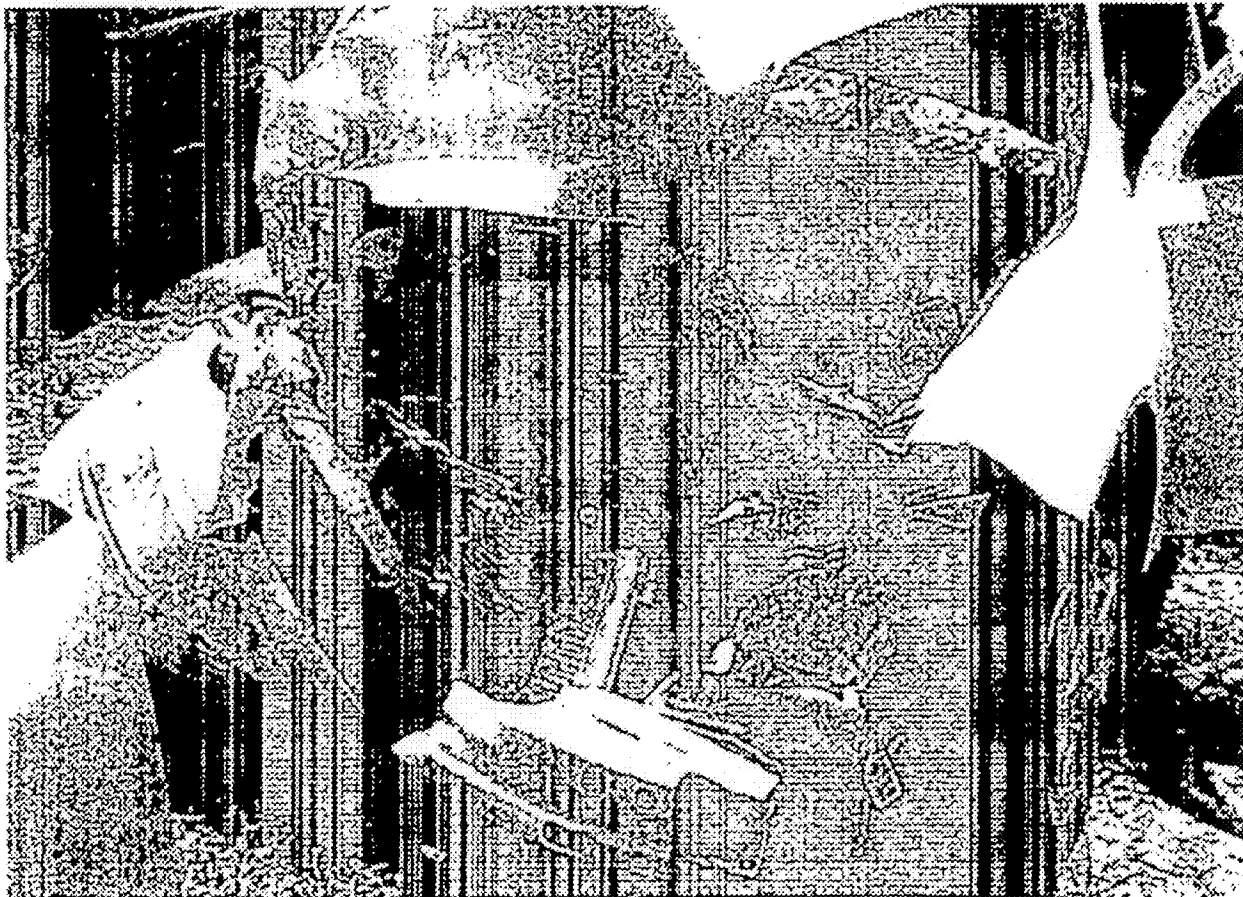
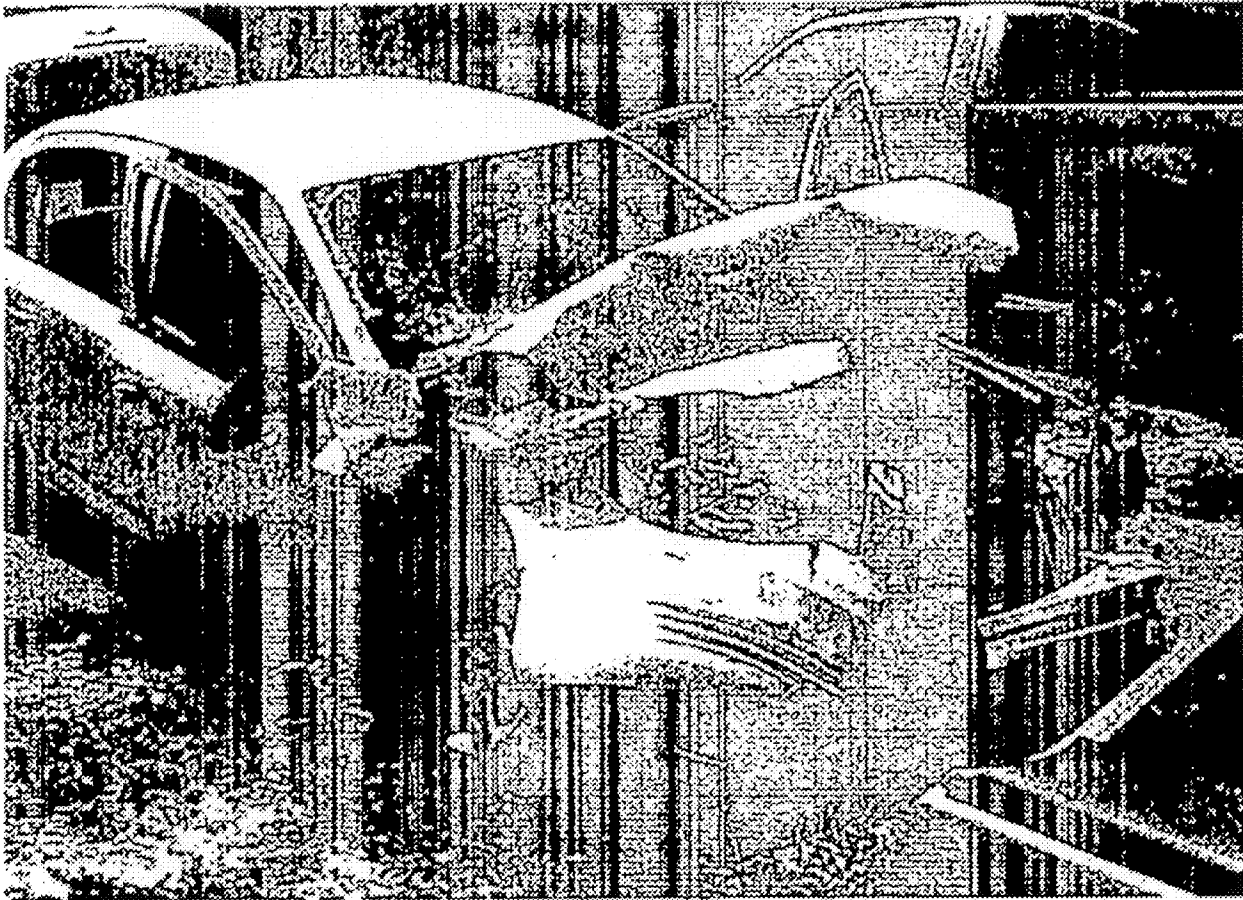
**CASTLE PINES HEALTH &
REHABILITATION CENTER**
Texas' Premier Care Fac... (more)

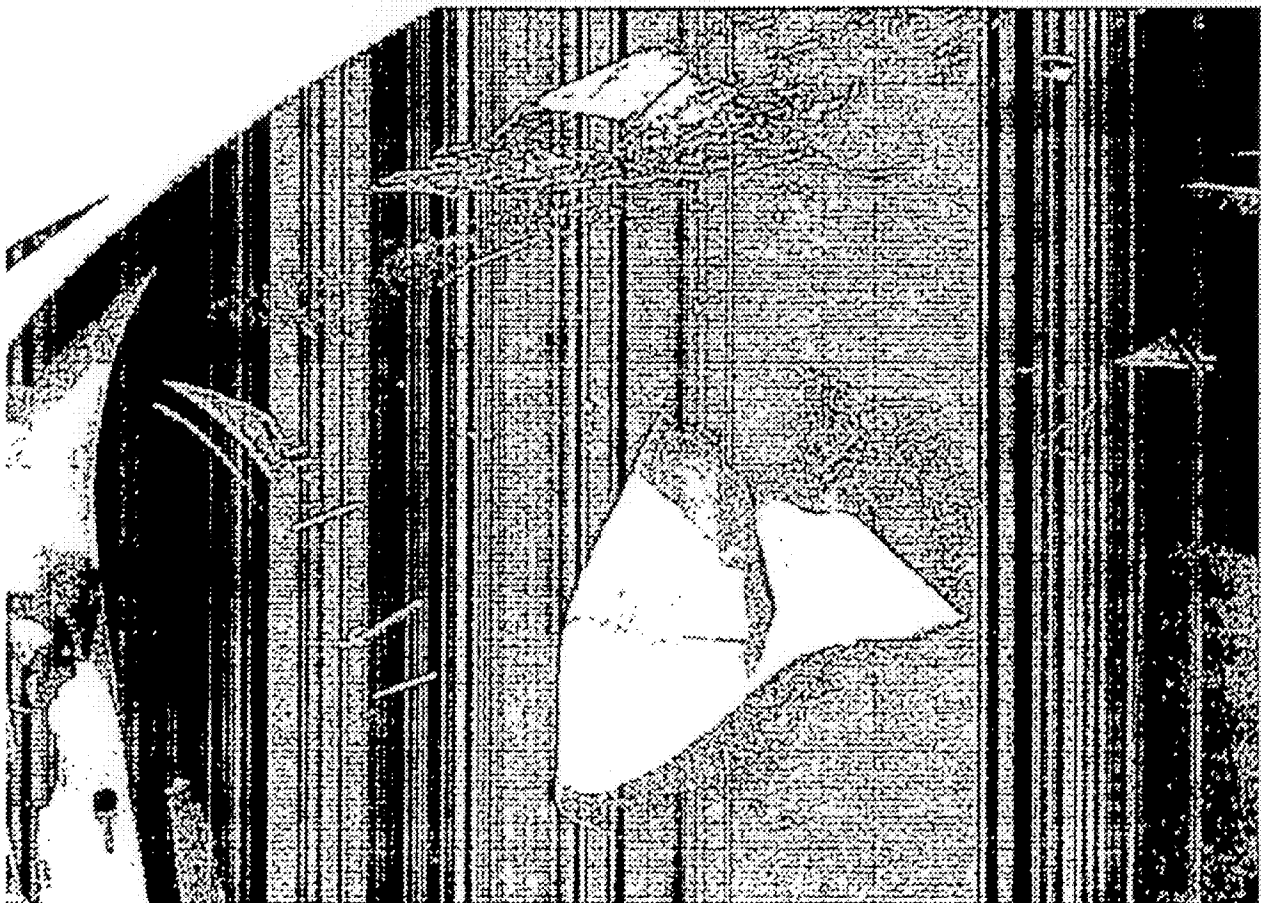
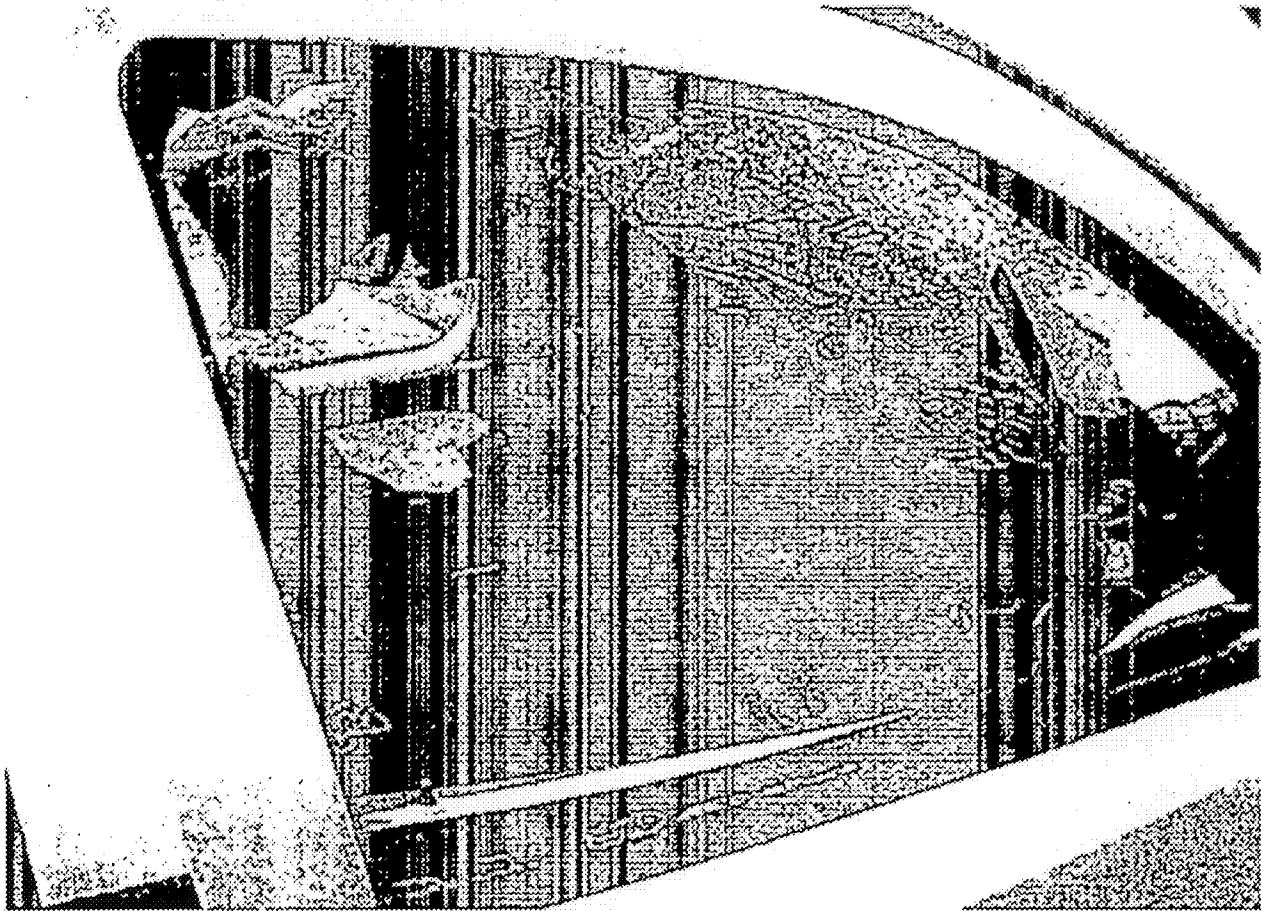
Service Representative Co
Register Services is looking
honest, ... (more)

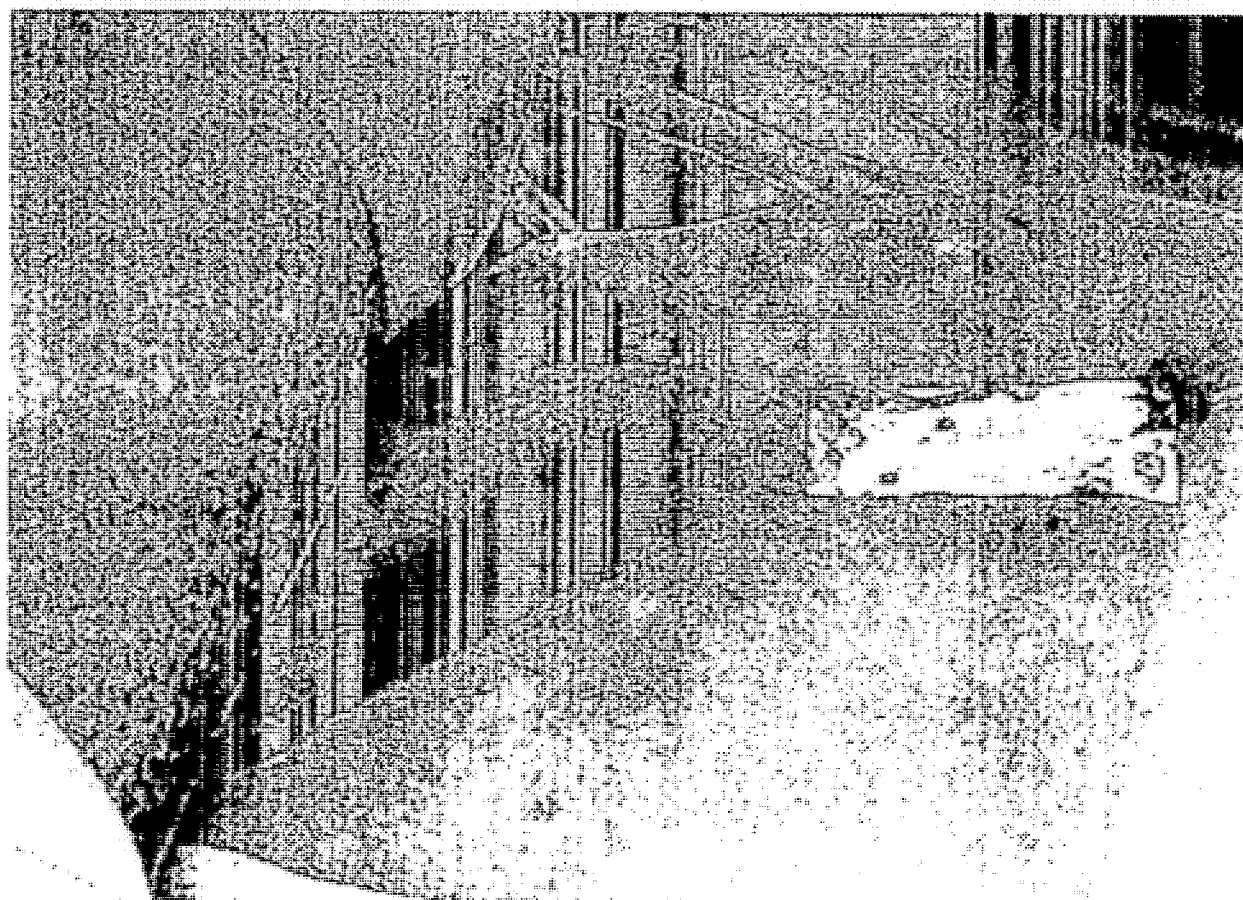
**EAST TEXAS COMMUNITY
HEALTH SERVICES, INC.** is
seeking a qualified, commu...
(more)

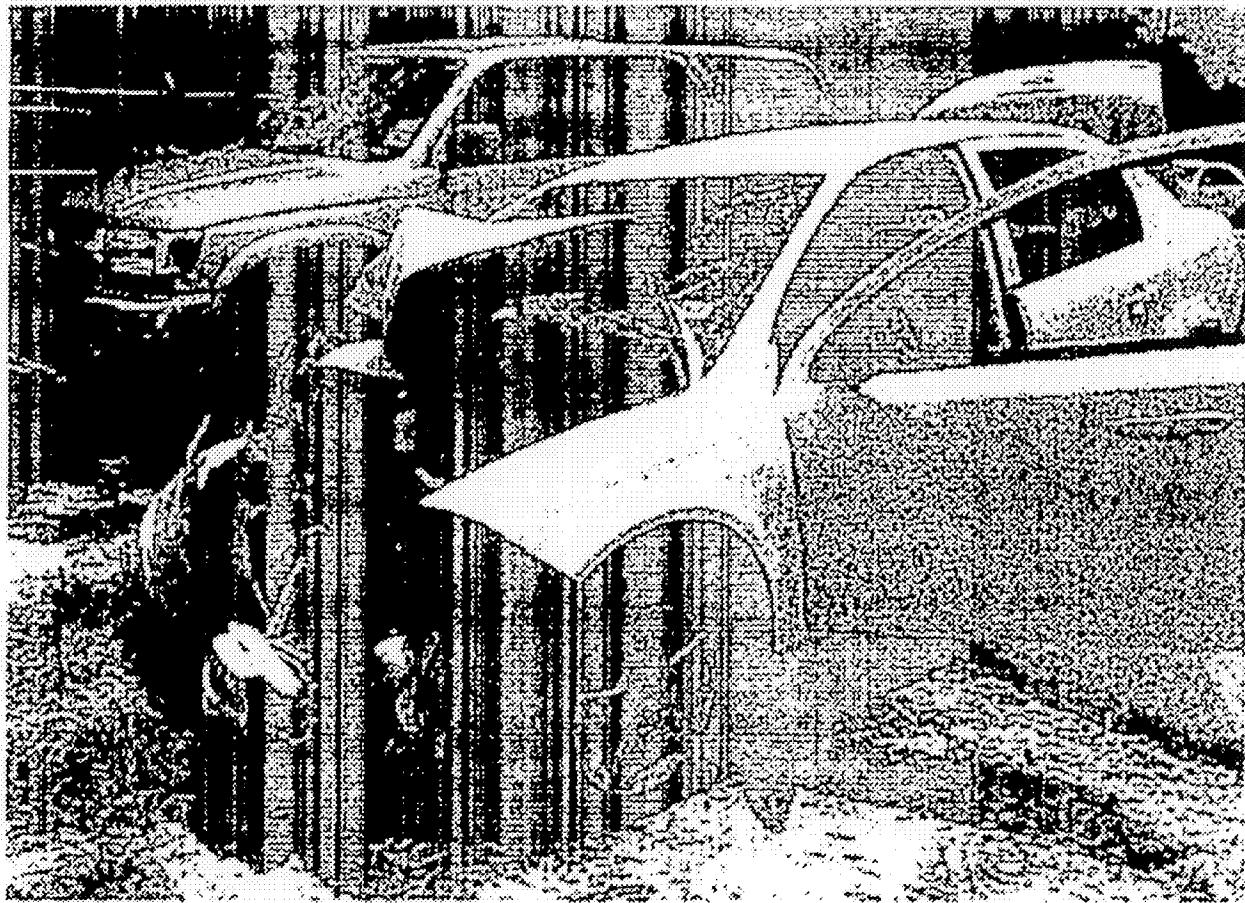
BOISE BOISE WOOD PRO
Engineer Industrial/Engineer
Wood Products... (more)



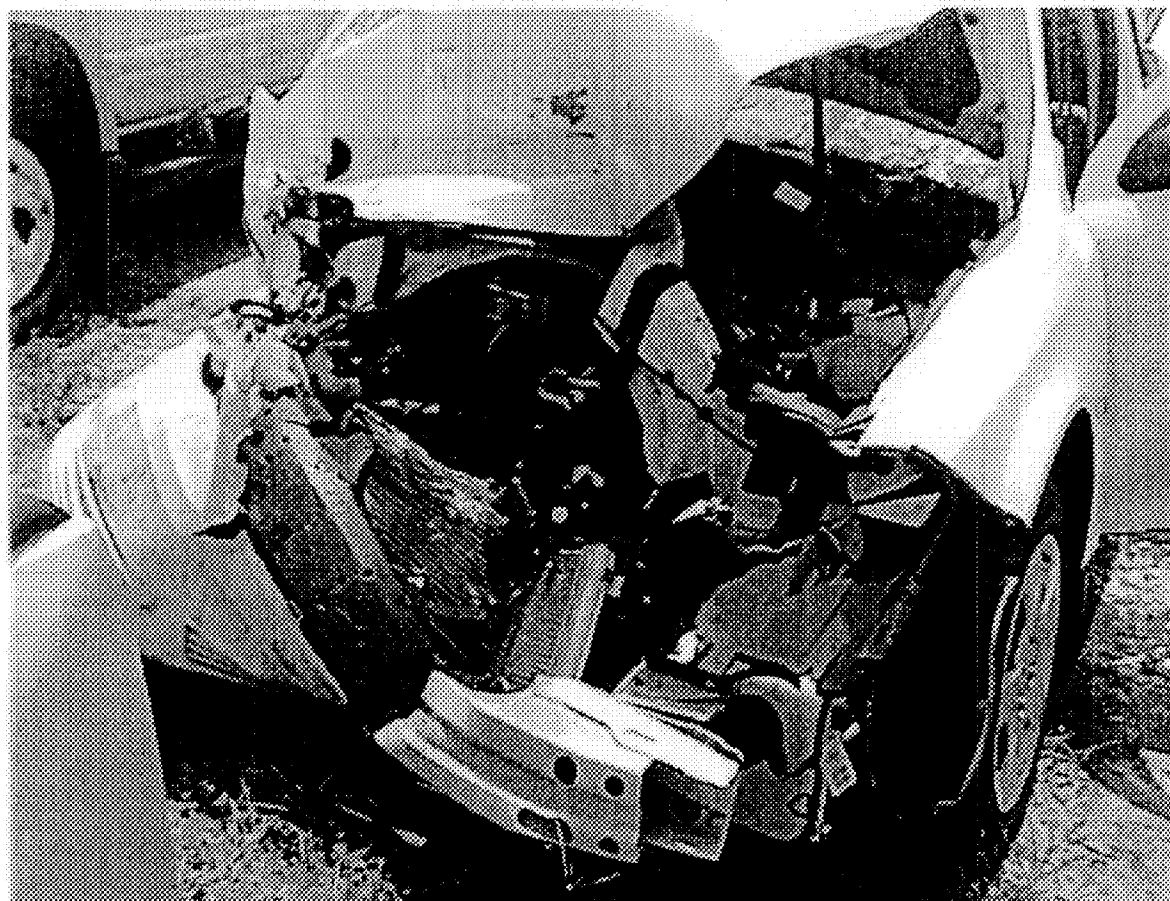






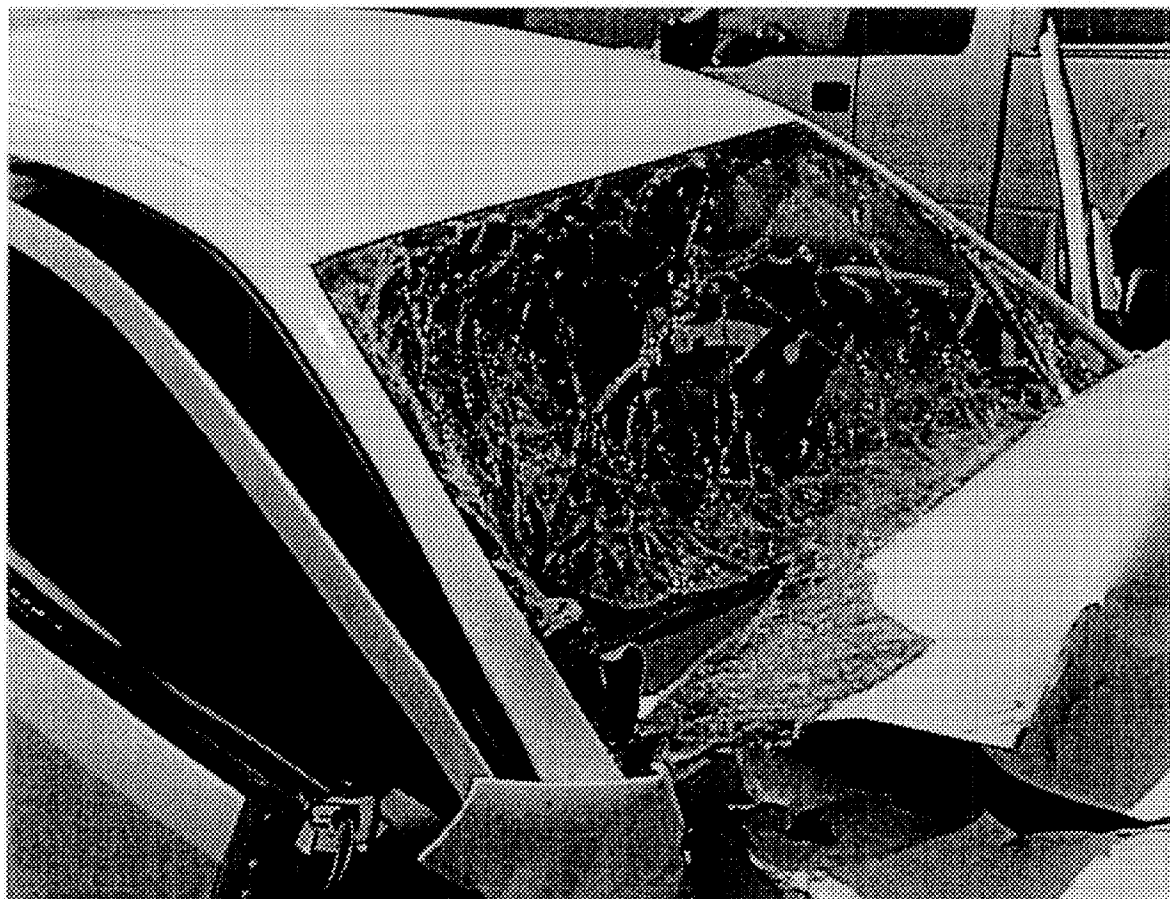


TOTAL P.11

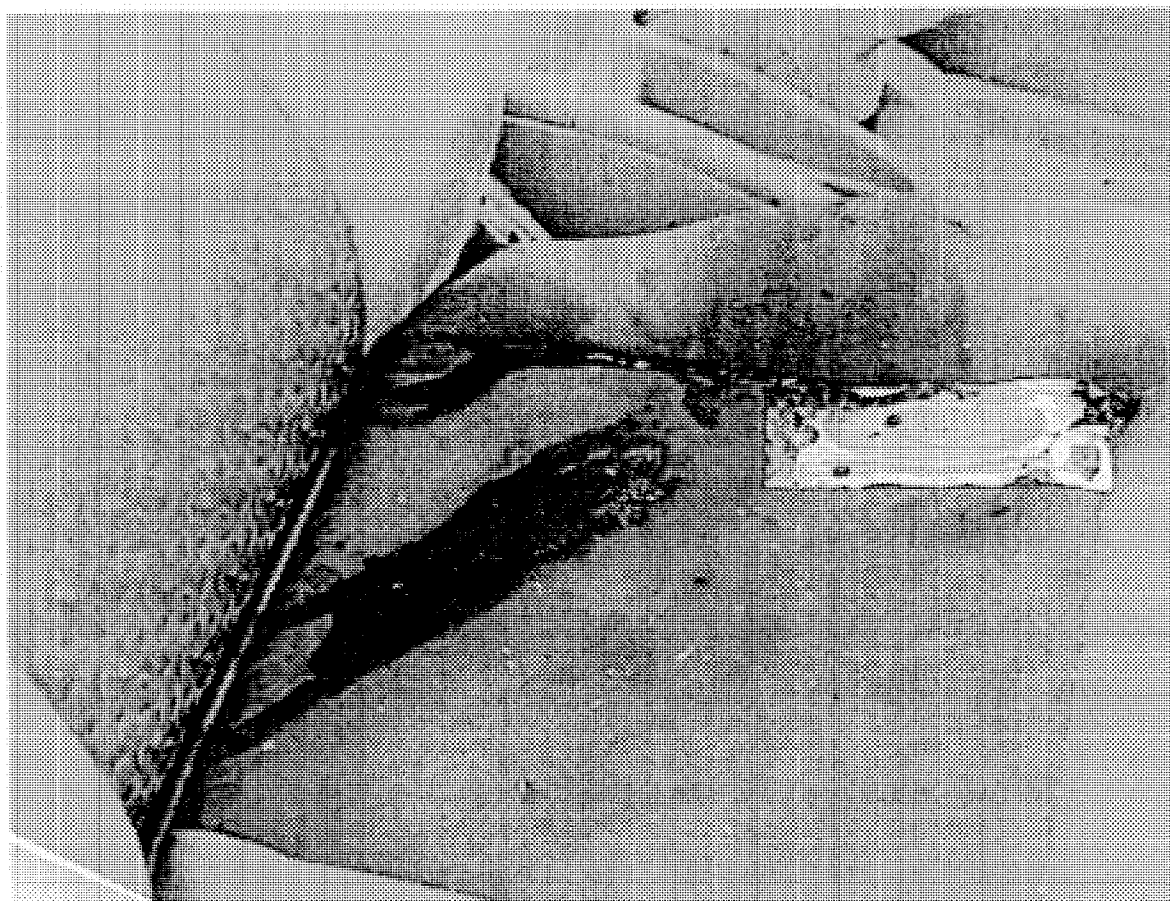




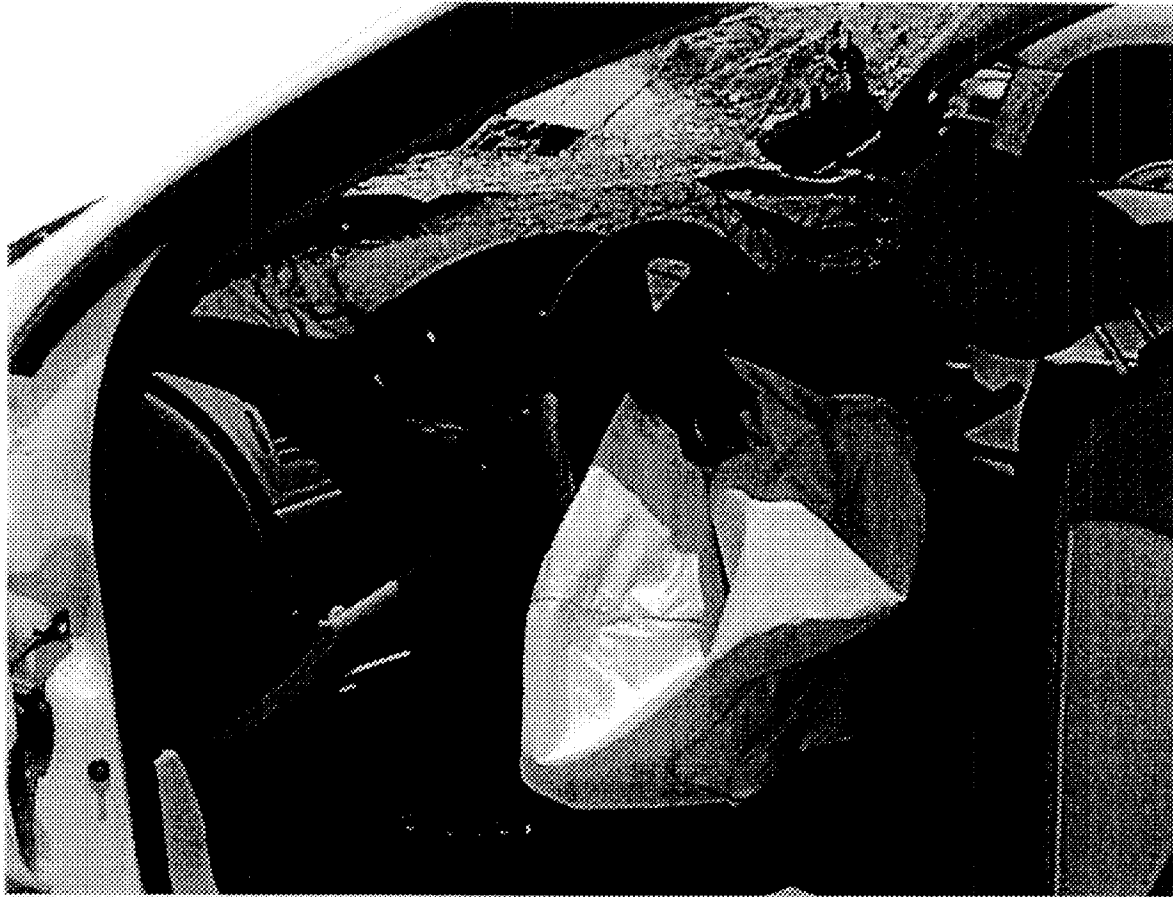














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